SUPPLEMENTAL AFFIDAVIT

STATE OF ARIZONA

CITY OF GILBERT

I, KEVIN TURNAGE, write the following statements for Jacqlynn Klein, who has identified herself as an EEO Contract Investigator for the Department of Health and Human Services, Indian Health Service ("IHS"). I understand this statement is not confidential and may be shown to the interested parties (those with a legal right to know). I understand that this statement may be used in evidence.

I understand that the Indian Health Service has accepted for investigation the following claims of Tonie Greve, (Complainant):

Complainant alleged she was subjected to discrimination based on race (American Indian), color (dark), age (Y.O.B. 1965), national origin (member of Omaha Tribe of Nebraska), disability (physical/mental), reprisal (opposing discrimination, **prior EEO activity**) and subjected to harassment (non- sexual)/hostile work environment when:

1. Complainant alleged she was subjected to harassment/hostile work environment. Examples include, but not limited to:

    a. Demeaning comments made by Complainant's Supervisor, Kevin Turnage, which include, "the United States government does not care for its veterans, and it certainly does not care for American Indians." "I will fill all jobs with non-Indians." Complainant further alleged Turner looks at her dark skin and forgets that she is an enrolled American Indian, not African American, and feels free to make derogatory comments in her presence; and,
    b. **Being required to participate in mandatory harassment inquiries in August 2022, December 2022, and again in April 2023;** and,
    c. Complainant alleged Phoenix Indian Medical Center (PIMC) does not advertise jobs using Indian Preference, so that Complainant can apply.

2. Complainant alleged she was assigned eight (8) doctors while co-workers Elizabeth Hill and Bertha Edison (both members of tribes recognized in Arizona) were assigned five (5) and four (4) doctors, respectively;
3. Complainant alleged she was forced to cover Clinical RN duties while others are not. Further, Complainant alleged Clinical RN Nurse Assessment/Nurse Triage were not part of her official duties. Complainant alleged Brenda Barr and Arlene Frost (both Caucasian nurses) were assigned these duties. Complainant also alleged she was required to perform the duties of Medical Assistants and Medical Staff Assistants;
4. Complainant alleged the abovementioned duties were not included in her PMAP and that she was rated the same as Caucasian employees with less duties;

5. Complainant alleged she did not have sick leave put back into the E-Comp leave system while other employees did; and,
6. Complainant alleged she was told she needed to provide a doctor's note for her immunocompromised status and reasons that she should not be placed on front line RN triage. Complainant further alleged other Caucasian and contract employees were not required to submit this documentation.

On January 17, 2023, Complainant requested an amendment to her formal complaint. Complainant alleged she was subjected to discrimination based on race (American Indian), color (dark), age (Y.O.B. 1965), national origin (member of Omaha Tribe of Nebraska), disability (physical/mental), reprisal (opposing discrimination) and subjected to harassment (non- sexual)/hostile work environment when:

7. Complainant alleged her reasonable accommodation, which she says was on file since February 21, 2022, was removed. Complainant further alleged she was being required to repeatedly submit forms to put an accommodation back in place; and,
8. Complainant alleged she was being required to swab symptomatic respiratory patients which was not part of her official duties.

Q1. What state and county are you located in as you answer these questions.

A1. Maricopa County Arizona

Q2. Please state your full name for the record.

A2. Kevin Dean Turnage

Q3. Please state your pronouns. (Ex: he/him/his, she/her/hers, they/them/their)

A3:

Q4. For what Agency do you work?

A4: Previously asked and answered

Q5. What is your current title, series and grade, to what organizational unit/department are you assigned, and what is your duty location (city/state)?

A5: Previously asked and answered

Q6. For how long have you been in your current position? (If you were in a different position at the time of the alleged discrimination, please identify the position you held at that time by title, series, grade, organizational unit/department, and duty location.)

A6. Previously asked and answered

Q7. Please identify your current first- and second-line supervisors, including name and title.

A7. Previously asked and answered

First-Line:

Second Line:

Q8. What was your job title, series/grade, organizational unit/department you were assigned, and what was your duty location (city/state) during the time of allegations: July 19, 2022, and August 12, 2022?

A8: Previously asked and answered

Q9. Please identify your first- and second-line supervisors, including name and title, as of July 19, 2022, and August 12, 2022

A9: Previously asked and answered

First-Line:

Second Line:

Q10. As this complaint has been filed based on race (American Indian), color (dark), age (Y.O.B. 1965), national origin (member of Omaha Tribe of Nebraska), disability (physical/mental), reprisal (opposing discrimination, ***prior EEO activity****).*

A. Please identify your race, color, age (month/year), and national origin for the record.

B. Have you identified yourself to the Agency as an individual with a disability?

C. Have you engaged in prior EEO activity (i.e., formal or informal EEO complaint; witness in investigation of coworker's complaint; request for reasonable accommodation; verbal complaint about discrimination against oneself or others; threatening to file a charge of discrimination; etc.)?

A10:

A. Previously asked and answered

B. Previously asked and answered

C. Previously asked and answered

Q11. What was your organizational relationship (if any) to Tonie Greve as of July 19, 2022, and August 12, 2022?

A11. Previously asked and answered

Claim 1: Complainant alleged she was subjected to discrimination based on race (American Indian), color (dark), age (Y.O.B. 1965), national origin (member of Omaha Tribe of Nebraska), disability (physical/mental), reprisal (opposing discrimination) and subjected to harassment (non- sexual)/hostile work environment when:

Complainant alleged she was subjected to harassment/hostile work environment. Examples include, but not limited to:

B. Being required to participate in mandatory harassment inquiries in August 2022, December 2022, and again in April 2023;

Q12. For the alleged discrimination:

> *"Being requited to participate in mandatory harassment inquiries in August 2022, December 2022, and again in April 2023."*

Please explain in detail when this happened, where this incident happened, who all was involved in this incident, and what transpired?

A12. I do not have any information as I do not know what the complainant refers to regarding mandatory harassment inquiries. I was not her Supervisor in April 2023.

Q13. Were all employees required to complete these mandatory harassment inquiries or just the Complainant?

A13. I do not know what the complainant refers to when they mention "mandatory harassment inquiries." I was not her supervisor in April 2023.

Q14. Did you have any knowledge of the Complainant's prior EEO activity? If so, please describe what knowledge you had, when you found out about the prior EEO activity, and how you discovered the prior EEO activity.

A14. I do not have any knowledge of the complainant's prior EEO activity.

Q15. Was the Complainant's prior EEO activity a factor in the way that you treated the Complainant? If so, please explain why this was a factor in the way you treated the Complainant.

A15. I did not have any knowledge of the complainant's prior EEO activity. Therefore, I emphatically deny that the complainant's prior EEO activity was a factor in how I treated the complainant. Regardless of her prior EEO activity, I have always treated the complainant with respect and professionalism. I would never discriminate against or retaliate against an employee for filing an EEO complaint.

Q16. Could you please respond to the Complainant's contention that you verbally stated that you do not like the American Indian to or around the Complainant?

A16. The statement is defamatory, It is also slanderous, fabricated, and untruthful, meaning that it is not based on fact. If made under oath, it is perjury, which is a crime.

Q17. Did the Complainant state that she did not like and/or was not comfortable with the comments you were making around her and that she felt uncomfortable? How did you respond to the Complainant discussing with you that she was comfortable with you voicing your personal opinions regarding the American Indians?

A17. This never occurred, and she never informed me that she felt uncomfortable. I have heard the complainant make comments about other individuals in the department that she disagreed with and that they were discriminating against her. The complainant has made a number of statements about the reasons why she believes she is being discriminated against. At times, she has stated that it is because she is dark-skinned. At other times, she has said it is because she is Native American. And if the person she is speaking about is also Native American, she has said it is because of her tribal affiliation. However, it is important to note that most people do not know her tribal affiliation.

Q18. Did you purposefully ignore the Reasonable Accommodation request submitted by the Complainant on February 21, 2022? If so, what is your reasoning for that action?

A18. All reasonable accommodation requests go through the equal employment opportunity office at the Phoenix area office. The complainant was informed that they stated they did not have a reasonable accommodation on file. The process is the same for anyone who requests reasonable accommodation. I did not and do not have the authority to deny the complainants or anyone else's reasonable accommodation. The complainant did fail to participate in the interactive process.

The complainant was requested to provide form HHS – 813 and Reasonable Accommodation Medical Request Form as provided by the Reasonable Accommodation Program Manager at Phoenix area EEO office. The EEOC states that when the disability and/or the need for accommodation is not obvious, the employer may ask the individual for reasonable documentation about his/her disability and functional limitations. The employer is entitled to know that the individual has a covered disability for which s/he needs reasonable accommodation. The complainant was informed of the reasonable accommodation process and that the contact for the process was at the Phoenix Area Office, she was instructed to contact the individual George Patton. The complaint was informed that according to Mr. Patton, there was no approved reasonable accommodation on file. I understand the employee refused to participate in the reasonable accommodation interactive process. I understand that the complainant was asked to provide appropriate documentation from a healthcare provider regarding the nature of any impairment(s), severity, duration, activities limited by the impairment(s), and the extent to which the impairment(s) limits the complainant's ability to perform the job's essential duties/functions.

Q19. Did you make comments to the complainant such as "go ahead and contact the union, I am friends with Jeff, and it takes 30 days for grievances to come to management"?

A19. I deny making any comments to the complainant such as "go ahead and contact the union, I am friends with Jeff, and it takes 30 days for grievances to come to

management." I am not friends with Jeff, and I am unaware of any policies or procedures that would prevent a grievance from coming to management before 30 days. I am committed to creating a workplace free from discrimination and retaliation, and I would never make any comments that could be interpreted as threatening or intimidating.

Q20. Did the Complainant request to you directly via email to enter her sick leave back into the E-Comp leave system? If so, did you respond and did you complete this in the E-Comp system?

A20. See the provided documentation and email chain provided with the initial affidavit where the complainant was instructed whom to contact. The employee failed to follow up as directed with the Department of Labor's Office of Workers Compensation. I do not have any involvement with her claim that occurred before I accepted the position. I do not have any access to her e-comp files. Different laws rules and regulations depend on the emergency declaration in effect, congressional acts, and illness. Additionally, I do not know if the complainant met the required regulatory requirements either. I do not know which if any of these possible situations apply to the complainant's request. This was addressed to the complainant in an e-mail dated October 7, 2022.

Q22. Why did you refuse to honor the Complainant's Reasonable Accommodation?

A22. See previous questions in this and previous affidavit. I did not and do not have the authority to deny the complainant's reasonable accommodation request. I

submitted her request to the EEO office in the same manner that I do with any employee who files a reasonable accommodation request. The complainant refused to provide medical documentation or participate in the interactive process. This was all addressed to the complainant in an email dated October 7, 2022. I understand that there are emails between Jason White and the complainant as well regarding this topic, recommend a ROI request for those emails.

Q23. Did you force the Complainant to cover Clinical RN duties and to swab symptomatic respiratory patients? If so, pl

A. 23. As previously stated, I did not force the complainant to do anything. I assigned her to these duties based on her position description, which states that she is responsible for performing various clinical duties, including the collection of lab specimens. I did not know that the complainant had a disability that would prevent her from performing these duties. I would have accommodated her disability if she had provided the agency with the medical documentation requested in accordance with regulations and laws that allow the agency to request certain documentation to allow the agency to determine accommodations needed.

Q24. Did you harass the Complainant? Do you know of anyone harassing the Complainant? Did she notify you in any way (written/verbal) that she was being harassed?

A24.

- I emphatically deny harassing the complainant. I have never made any discriminatory or harassing statements or actions toward the complainant or anyone else.
- I do not know of anyone harassing the complainant. I have never seen or heard of discriminatory or harassing behavior toward the complainant.
- The complainant has never notified me in any way, written or verbal, that she was being harassed.
- I am committed to creating a workplace free from discrimination and harassment. I would never do anything to violate the complainant's rights. I am confident that a thorough investigation will clear my name and confirm that I have not harassed the complainant.
- Here are some additional details that I can provide:
    - I have worked with the complainant as her supervisor since accepting the position in March 2022. During that time, I have always treated her with respect and professionalism.
    - I previously had contact with the complainant since she came to work at the (PIMC) when I was a nurse educator. During that time, I have always treated her with respect and professionalism.
    - I have never made any discriminatory or harassing statements or actions toward the complainant or anyone else. I am aware that such behavior is prohibited by law and I would never do anything to jeopardize my job.

- The complainant has never notified me in any way, written or verbal, that she was being harassed. If she had, I would have taken immediate action to investigate the matter and take appropriate steps to address the issue following the processes directed by Federal Law, Regulations, and IHS policy.

I am confident that a thorough investigation will clear my name and confirm that I have not harassed the complainant. I am committed to creating a workplace free from discrimination and harassment. I will continue working with the complainant and others to ensure that our workplace is safe and respectful.

Q25. Do you have any documentation you would like to provide in support of your testimony? If yes, identify all documents you will be providing and their relevance to the complaint.

A25. See previous documents provided.

Q26. Is there anything else you would like to add into the record?

A26.

1. The complainant persistently exploits the Equal Employment Opportunity (EEO) system to retaliate against any person who assumes the role of her supervisor within the Primary Care Clinic. A repetitive cycle of lodging similar or identical accusations of discrimination against each of her supervisors is evident, despite her awareness that her claims are fictitious and lacking in validity. The complainant has consistently misused the EEO system for reasons other than the

intended objective of preventing and eliminating discriminatory practices. The case satisfies the criteria for demonstrating a clear pattern of EEO system misuse as stipulated under 29 C.F.R. § 1614.07:

(i). Evidence of recurrent complaints.

(ii). Claims that are alike, identical, lack detail or pertain to previously resolved issues.

(iii). Proof of bypassing other administrative procedures, retaliating against the organization's internal administrative process and overloading the EEO complaint system of the agency.

The facts reveal that the complainant's sole aim is to lodge unavailing EEO complaints against the organization in vengeance for being held responsible for accomplishing the tasks specified in her official job description. The individual was always treated equivalently to all other employees I supervised, irrespective of their job title, race, age, color, religion, gender, nationality, disability, or tribal association. Until this claim was made, I was unaware of her tribal affiliation or that of Ms. Hill or Ms. Edison.

The complainant currently has five Hostile Work Environment allegations pending against her.

2. The complainant continues exploiting the EEO system as retribution against anyone who oversees her within the clinic. The complainant has consistently lodged similar or duplicate accusations of bias against every manager she's worked under, fully cognizant that these claims are groundless and fabricated. The complainant has demonstrated a blatant pattern of EEO system

abuse, using it for objectives outside its intended use of discrimination prevention and elimination. Again the grievance satisfies the criteria for demonstrating a manifest misuse of the EEO process as delineated under 29 C.F.R. § 1614.07:

(i). Documentation of multiple grievances.

(ii). Accusations that are comparable, identical, lack detail, or pertain to previously settled issues.

(iii). Proof of bypassing other administrative procedures, retaliating against the organization's internal administrative process and overstressing the agency's EEO complaint system.

The facts indicate that the complainant's sole aim is to lodge pointless EEO allegations against the supervisor in retribution for her being held responsible for fulfilling her official role obligations. The complainant was never treated differently from any other employees I managed, irrespective of their job title, race, age, color, religion, sex, national origin, disability, or tribal association. Until this allegation came up, I had no knowledge of her tribal affiliation or that of Ms. Hill or Ms. Edison.

The employee currently has five pending Hostile Work Environment charges against her.

3. The complainant's abuse of the EEO process is a clear attempt to harass and intimidate the agency. The complainant's repeated filings of frivolous complaints are a waste of the agency's resources and time. They also serve to undermine the integrity of the EEO process.

For these reasons, I respectfully request a dismissal of the complainant's latest complaint for:

- **Duplication of a claim**: The allegation states a claim identical to one that was raised in a pending complaint or in a prior complaint that has been decided. 29 C.F.R. Section 1614.107(a)(1).
- **Mootness**. There is no reasonable expectation that the action or practice will happen again and interim relief or events have completely and irrevocably eradicated the effects of the alleged violation. 29 C.F.R. Section 1614.107(a)(5).
- **Abuse of process:** The complaint evidences a clear pattern of misuse of the EEO process for a purpose other than the prevention and elimination of employment discrimination. A clear pattern of misuse of the EEO process requires: (1) evidence of multiple complaint filings; and (2) allegations that are similar or identical, lack specificity, or involve matters previously resolved; or evidence of circumventing other administrative processes or intentionally trying to clog the agency's in-house administrative processes or overburdening the EEO complaint system. 29 C.F.R. Section 1614.107(a)(9).

Additionally, I ask that the complainant be warned about any further acts of contumacious conduct. Reference case Agency. Stoyanov v. Dep't of the Navy, EEOC Appeal Nos. 0120113142, 0120113817, & 0120114019 (December 6, 2011).

COUNTER-COMPLAINTS

Defamation (Slander and Libel), abuse of process, harassment, hostile work environment, contumacious conduct, intentional infliction of emotional distress, and racial and gender discrimination.

Complainants' statements were made in writing and orally.

The Complainant's statements were actual malice as the Complainant made false statements about me, knowing they were false and/or with reckless disregard for whether the statement was true or false.

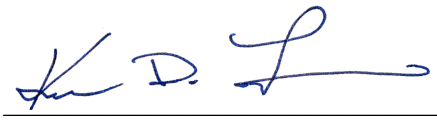
The complainant was negligent about whether her statements were true or false.

As a result of the statements made against me, I have suffered the following:

- Loss of reputation: I have been publicly accused of wrongdoing, which has damaged my reputation.
- Damage to my career: I have been relieved of my supervisory duties in three departments as a result of the accusations against me.
- Mental anguish: I have experienced severe emotional distress as a result of the accusations against me. I have had trouble sleeping, concentrating, and enjoying my life.
- Emotional distress: I have been humiliated and shamed by the accusations against me. I have felt isolated and alone.
- Public humiliation: I have been the subject of gossip and speculation at work and in my community. I have felt embarrassed and ashamed.
- Loss of enjoyment of life: I have lost my zest for life. I no longer enjoy the things I used to do.
- Depression: I have depression. I have had difficulty sleeping, eating, and concentrating.
- Anxiety: I have anxiety. I am constantly worrying about the future and what people think of me.
- Loss of appetite and energy: I have lost my appetite and have difficulty getting through the day. I feel tired and run down all the time.
- Sleep disturbance: I have difficulty sleeping. I wake up in the middle of the night and have trouble falling back asleep.

I am requesting that action be taken to protect my rights and to ensure that I am not discriminated against and harassed in the future by the complainant.

I have read the forgoing Affidavit consisting of 16 pages and a signature page, and I hereby attest under penalty of perjury that it is true and correct to the best of my knowledge and belief. I have signed or initialed each page. I typed all answers given, which I have submitted.



Wednesday, June 28, 2023

Kevin Turnage
Affiant Name

Date

Name
EEO Investigator

Date

**********NOTHING BELOW THIS LINE**********